

March 12, 2026

BEFORE THE FEDERAL MARITIME COMMISSION, WASHINGTON, D.C. 20573

**RE: Application for Special Permission
Waiver of 30-Day Notice Period for Gulf War Risk Surcharge (WRS)
Pursuant to 46 CFR § 520.14**

Sir/Ma'am:

Applicant, Vanguard Logistics Services (USA), Inc. dba Vanguard Logistics Services dba Vanguard dba Brennan International Transport dba Brennan dba Conterm Consolidation Services dba Conterm dba Direct Container Line dba DCL dba Ocean World Shipping dba OWS dba Ocean Express dba Oceanexpress (FMC Org. No. 024976 / Lic. No. 017237), hereby respectfully applies to the Federal Maritime Commission for special permission under 46 CFR § 520.14 to waive the thirty (30) day notice requirement and permit the immediate publication and effectiveness of a Gulf War Risk Surcharge (WRS) in its tariff.

1. Applicant

Applicant is a licensed and bonded Non-Vessel-Operating Common Carrier operating pursuant to FMC Org. No. 024976 / Lic. No. 017237.

2. Relief Requested

Applicant respectfully requests special permission to publish and make effective immediately the following tariff matter:

Organization: Vanguard Logistics Services (USA), Inc. dba Vanguard Logistics Services dba Vanguard dba Brennan International Transport dba Brennan dba Conterm Consolidation Services dba Conterm dba Direct Container Line dba DCL dba Ocean World Shipping dba OWS dba Ocean Express dba Oceanexpress, FMC Org. No. 024976 / FMC Lic. No. 017237.

Tariff No. & Title: Rule 10-M Gulf War Risk Surcharge.

Rule: Gulf War Risk Surcharge (WRS), effective date = immediately, All shipments moving between U.S. ports and ports in the Arabian/Persian Gulf region, including but not limited to ports in the United Arab Emirates, Saudi Arabia, Kuwait, Qatar, Bahrain, Iraq, and Oman. Rate: USD \$75.00 per W/M. Commodity: All commodities including FAK.

Confidential Treatment: No confidential treatment is sought.

Applicant requests that the Commission permit this surcharge to become effective immediately upon filing, without observance of the standard thirty (30) day notice period.

3. Basis for Special Permission / Good Cause

Good cause exists for granting this application.

As of March 1–2, 2026, there has been a sudden and extreme escalation of security risks and related operating costs affecting vessel transits through the Strait of Hormuz and the wider Gulf region. These changed conditions were unforeseen, developed rapidly, and have created immediate commercial and operational impacts on carriers and transportation intermediaries serving the trade.

First, carriers are experiencing immediate increases in war risk-related costs, including but not limited to higher hull and machinery war risk premiums, elevated insurance-related expenses, and the need for rerouting and/or enhanced security protocols for vessels serving the region. These extraordinary costs were not reasonably capable of being anticipated sufficiently in advance to permit compliance with the ordinary thirty-day notice requirement.

Second, the requested surcharge is necessary to maintain competitive parity and service continuity. Applicant understands that major Vessel-Operating Common Carriers, including Hapag-Lloyd and CMA CGM, have announced similar emergency conflict or war risk-related surcharges effective March 2, 2026, for non-FMC regulated scopes, and have sought immediate or expedited implementation for FMC-regulated trades. Absent prompt authority to implement a comparable surcharge, Applicant would be placed at a competitive disadvantage and may be unable to continue offering service under commercially reasonable conditions in the affected trade.

Third, immediate implementation promotes market transparency and fairness. The requested surcharge allows Applicant to continue providing service in a volatile operating environment while transparently recovering a portion of the extraordinary costs directly associated with cargo moving through the affected region. This approach is fair to cargo interests because it aligns the surcharge with the trade lanes subject to the increased operational and security burdens.

Finally, strict adherence to the thirty-day notice period would be impracticable and contrary to commercial realities. The cost increases and security developments are immediate in nature, and delaying implementation would force Applicant to absorb substantial extraordinary costs for an extended period without recourse, thereby disrupting service and undermining tariff transparency.

For all of these reasons, Applicant submits that good cause exists under 46 CFR § 520.14 for the Commission to grant special permission for immediate effectiveness.

4. Previous Applications

Applicant states that it has not made any previous application for this specific authority.

5. Prayer for Relief

WHEREFORE, Applicant respectfully requests that the Federal Maritime Commission grant special permission under 46 CFR § 520.14 authorizing Applicant to publish and make effective immediately a Gulf War Risk Surcharge (WRS) in the amount of USD \$75.00 per W/M, minimum charge applicable, on cargo moving between U.S. ports and ports in the Arabian/Persian Gulf region, without regard to the usual thirty (30) day notice requirement, and for such other and further relief as the Commission may deem just and proper.

Respectfully submitted,

Vanguard Logistics Services (USA), Inc.
FMC Org. No. 024976 / Lic. No. 017237

By: 

Name: Reid Gardner

Title: Associate General Counsel/Corporate Secretary

Date: 12 March 2026

Vanguard Logistics Services (USA), Inc. dba Vanguard Logistics Services dba Vanguard dba Brennan International Transport dba Brennan dba Conterm Consolidation Services dba Conterm dba Direct Container Line dba DCL dba Ocean World Shipping dba OWS dba Ocean Express dba Oceanexpress